

The First Home Buyer's 90-Day Checklist — New South Wales

Everything you need to sort before you sign, in plain English.

Correct as at July 2026. Grant amounts, price caps and eligibility rules are set by government and can change — always confirm current details with Revenue NSW (revenue.nsw.gov.au) or your lender before relying on this for a purchase decision. This checklist is general information, not financial or legal advice.

Section 1 — Get Your Foundations Right (Do this first, before house-hunting)

- ☐ [] **Check your borrowing capacity with 2-3 lenders or a mortgage broker** — borrowing power varies more between lenders than most people expect.
- ☐ [] **Check if you qualify for the federal First Home Guarantee.** Places are currently unlimited with no income caps. Property price caps apply and differ between Sydney and regional NSW — confirm the current caps with your lender, as these are reviewed periodically.
- ☐ [] **Understand the First Home Buyers Assistance Scheme (FHBAS) — your biggest likely saving.** This gives a **full transfer duty (stamp duty) exemption** on new or established homes valued **up to \$800,000**, and a **sliding-scale concession** for properties between **\$800,000 and \$1,000,000**. Above \$1 million, no exemption or concession applies. On an \$800,000 home, this saves roughly \$31,000 in duty that would otherwise apply.
- ☐ [] **Check your eligibility for the First Home Owner (New Homes) Grant.** This is a **one-off \$10,000 payment**, but only for **new homes** (never previously occupied or sold). Price caps apply: the total purchase price must not exceed **\$600,000** for a new home purchase, or the combined land + building contract value must not exceed **\$750,000** if building. This is separate from, and stacks with, the FHBAS duty exemption/concession.
- ☐ [] **Watch the spouse/partner rule.** If your spouse or partner has ever owned residential property in Australia — even if they're not on this title — you may be ineligible for the FHOG and FHBAS. This catches people out regularly, so check this early.
- ☐ [] **Understand the residence requirement.** You must move into the property within 12 months of settlement and live there continuously for at least 12 months to keep these benefits — failing this can require repayment plus penalties.
- ☐ [] **Consider house-and-land package structuring.** If you use separate contracts for land and building, stamp duty applies only to the land component — this can bring you under the FHBAS threshold even where the total package would otherwise exceed it. Make sure your solicitor structures this correctly.
- ☐ [] **Understand the Help to Buy shared equity scheme** — a federal scheme where government can co-invest, reducing what you need to borrow. Note: you can't use Help to Buy and the First Home Guarantee 5% deposit scheme at the same time — compare which gives the better outcome for your situation.
- ☐ [] **Get formal pre-approval, not just an estimate** — this strengthens your negotiating position and confirms your real, lender-verified budget.

Section 2 — While You're Searching

- ☐ [] **Set a firm maximum price** based on your pre-approval.
- ☐ [] **Budget for costs beyond the purchase price:** legal/conveyancing fees, building and pest inspections, loan fees, and moving costs — even with \$0 stamp duty, these add up to real money.
- ☐ [] **Note that in NSW, the vendor prepares the Contract of Sale before listing** — meaning you (or your solicitor) can and should request and review this early, before you're deep into negotiations.

Section 3 — Know Your Legal Protections Before You Sign

- ☐ [] **Understand the cooling-off period.** For private treaty sales in NSW, you get **5 business days from exchange of contracts** to withdraw. Auctions have **no cooling-off period** at all, and this also applies if you exchange within 5 business days of a scheduled auction for that property.
- ☐ [] **Know the cost of cooling off.** If you withdraw during the cooling-off period, you forfeit **0.25% of the purchase price** to the vendor.
- ☐ [] **Get a building and pest inspection done before exchange (private treaty) or before auction day.** There is no cooling-off period at auction, so this is your only real opportunity to catch serious issues beforehand.
- ☐ [] **Have a solicitor or conveyancer review the Contract of Sale before you sign** — including the s10.7 planning certificate (formerly known as the s149 certificate), title details, and any special conditions.

Section 4 — Between Signing and Settlement

- ☐ [] **Confirm when insurance responsibility passes to you** — this can vary by contract terms in NSW, so confirm the exact timing with your solicitor and arrange building insurance accordingly.
- ☐ [] **Finalise unconditional loan approval** well before settlement.
- ☐ [] **Book a pre-settlement inspection** in the days before settlement.
- ☐ [] **Confirm who's lodging your FHOG/FHBAS paperwork** — usually your solicitor/conveyancer as part of settlement via Revenue NSW's combined application process, but confirm this explicitly.

Section 5 — Common First-Home-Buyer Mistakes to Avoid

- ☐ [] **Don't assume the FHOG applies to established homes** — it's new homes only; the FHBAS duty exemption is the one that applies to established homes too.
- ☐ [] **Don't forget the spouse/partner ownership rule** — this disqualifies many buyers who assume they're eligible.
- ☐ [] **Don't skip the inspection to save money or move fast** — especially critical given there's no cooling-off period at auction.
- ☐ [] **Don't exceed the price caps by a small margin without checking first** — going even \$1 over the \$800,000 FHBAS exemption threshold moves you into the concessional (not free) bracket, and going over \$1 million removes the benefit entirely.

Quick Reference — NSW First Home Buyer Support (July 2026)

SUPPORT	AMOUNT / DETAIL	APPLIES TO
FHBAS full duty exemption	\$0 stamp duty	New or established homes, ≤\$800,000
FHBAS concession	Sliding scale	\$800,000-\$1,000,000
First Home Owner (New Homes) Grant	\$10,000 one-off	New homes only, ≤\$600,000 (or ≤\$750,000 land+build)
First Home Guarantee (federal)	5% deposit, no LMI	Price caps vary Sydney vs. regional NSW
Cooling-off period	5 business days	Private treaty only, not auctions; 0.25% penalty to withdraw

Sources: Revenue NSW (revenue.nsw.gov.au), NSW Government. Always verify current figures before making a purchase decision.

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